

16 Compounding of Building Construction and Development

16.1 Title and Commencement

After the coming in to force of these building byelaws, the provisions in this chapter shall supersede 'Compounding Byelaws 2009' issued by the Government vide notification number 4824/8-3-09-09 miscellaneous/09, dated 14 January 2010. Those applications for compounding which have not been decided before the commencement of these building byelaws, on application by the owner/developer, shall be dealt with according to the provisions of this chapter.

16.2 Compounding of Offences

The action for Compounding of any offence punishable under Uttar Pradesh Urban Planning and Development Act, 1973, before or during the institution of the action shall be taken by Vice-Chairman/s of relevant Development Authorities or by any officer authorized by him.

Compounding of offence shall be done with the restriction that the accused shall not further continue the offence in relation to the non-compoundable construction and shall remove the non-compoundable construction or development work within the period specified by the officer. The officer compounding the offence shall be free to re-prosecute and demolish the construction in contravention of the byelaws.

16.3 Compounding Process

16.3.1 Grant/ Refusal

The owner/developer may submit an application for compounding suo-moto or in response to the notice issued. Any notice issued to the owner/developer for unauthorized construction shall clearly delineate the exact nature of offence, the provisions of byelaws which have been contravened, nature and scope of construction which is compoundable.

While granting or refusing the compounding of construction or development work, Vice-Chairman, Development Authority, or any officer authorized by him, shall examine which provisions of these building byelaws have been violated, whether the unauthorized construction is within the compounding limits as prescribed and what impact the unauthorized construction has on surrounding buildings and infrastructure.

16.3.2 Following offences shall not be compoundable.

- (i) Construction done on the land reserved for or related to public and semi-public amenities, services and utilities such as road, railway line, park, green verge/belt etc.
- (ii) Construction done in contravention of land-use prescribed in Master Plan or Zonal Development Plan or Lay-out plan or lease.
- (iii) Construction done on plots in illegal colonies.
- (iv) Construction done on government or public land without permission of the concerned department.
- (v) Construction done on disputed land.
- (vi) Construction in the buildings where earthquake resistance measures are mandatory as per chapter 11.8.
- (vii) Construction of buildings where firefighting requirements are mandatory or where No Objection Certificate (NOC) for construction/addition/alteration has not been obtained from fire authority (wherever mandatory), as per chapter 10.1.3.
- (viii) Construction in violation of building height in heritage zones, protected monuments, and civil aviation areas or in restricted height areas.

- (ix) Construction carried out where required parking arrangement is not feasible.
- (x) Construction carried out on areas reserved for 'common areas and facilities' in group housing and other multi-storey buildings.
- (xi) Construction done on land covered by ponds/reservoirs, river, drain, etc, identified in Master Plan/Zonal Plan/ Lay-out Plan or recorded in the revenue records.
- (xii) Construction in the buildings where measures for access to differently abled persons are mandatory as per chapter 12.
- (xiii) Construction undertaken in mixed use development, which violates the criteria of pre-dominant land use.

16.3.3 Compoundable Construction

Construction permissible as per building byelaws and unauthorized construction shall be shown separately in the plan submitted with the application for compounding. Unauthorized construction in setbacks, ground coverage and FAR ~~in front, side and rear setback~~ shall be compoundable only in contiguity of main building up to the limits prescribed as under:

Parameter	All Buildings <=15-meter and multi-units upto 17.5 meter height except Group Housing	Buildings >15-meter height and Group Housing except multi-units.
Front Setback	25% of front setback area up to a maximum of 1.0 meter	10 percent of setback area (maximum up to a width of 1-meter), subject to Fire NOC.
Rear Setback	Residential: (a) Plot Size up to 500 sqm- 100% compoundable in cases where proper provisions have been made for light and ventilation. (b) Plot Size > 500 sqm - construction up to maximum 10% of the area in rear setback (in addition to permissible 40%) Others: 10 percent of rear setback area	
Side Setback	Construction up to a maximum of 25% of width of side setback	
Ground Coverage & FAR	Construction up to a maximum of 10% of total permissible FAR, in addition to permissible ground coverage. Note: Construction in front, rear and side setbacks shall be counted while calculating the maximum permissible compoundable area.	Construction up to a maximum of 10% of total permissible FAR, in addition to permissible ground coverage. Note: Construction in front, rear and side setbacks shall be counted while calculating the maximum permissible compoundable area.
Building Height	Construction up to a maximum of 10% height from permissible limit without changing the number of floors	-
Maximum compoundable units	Maximum one unit in plotted development beyond permissible limit	In Group Housing: Proportionate units relative to percentage of compoundable additional FAR/Purchasable FAR
Others	Up to 10 percent of any dimension and area of the items indicated in 16.3.8	Up to 10 percent of any dimension and area of the items indicated in 16.3.8

Note-1: Compounding shall not allow for change of category of the building.

16.3.4 Schedule of Compounding Fee

The calculation of compounding fee for various kinds of illegal constructions and development works shall be in accordance with the rates given in the paragraph 16.3.8.

16.3.5 Calculation of Compounding Fee

- i. If in any case compounding construction falls under illegal construction of more than one kind, the compounding fee of highest category use shall be realized as per charges applicable for compounding of FAR in 16.3.8. Besides, calculation of compounding fee for each floor shall be done separately, However, separate compoundable fee for compoundable ground-coverage shall not be payable.
- ii. For Compounding of illegal construction, the builder shall deposit amount of compounding fee, as per the Schedule, in lump-sum or in instalments with interest rate (MCLR+1%), along with the compounding plan. Other fees prescribed by the Authority and an affidavit for demolition of the non-compoundable part shall also be deposited and subsequently the Authority shall take a decision on the application for compounding.
- iii. Compounded plan shall be issued only after the calculated fee is deposited. The terms and conditions regarding approval shall compulsorily be recorded on the plan by the officer authorized for compounding.

16.3.6 Demolition

- i. The building or any part thereof shown in the plan submitted for Compounding, which is within the limits of compounding shall not be demolished. However, post 30 days after the development authority identifies the non-compoundable portion in the compoundable map submitted by applicant, there shall be no restriction on demolition of such identified portion, in accordance with the law.
- ii. Subsequent to approval of the plan, action under Section-27 of Uttar Pradesh Urban Planning and Development Act, 1973 shall cease; in case the order for demolition of compounded portion is passed, the same shall be deemed null and void.
- iii. Remaining non-compoundable portion shall be removed by the builder on his own expense or else, the same shall be demolished by the Development Authority and the expenses incurred on the same shall be realized from the builder as per the rules.

16.3.7 Realization of Compounding Fee

- a) In case the applicant fails to duly apply for availing of facility of Compounding, the Development Authority shall take action, as per rules, for demolition of illegal construction.
- b) Where No Objection Certificate will be required from Fire department, Department of Archaeology, Airport Authority of India, National Highway Authority of India/ Public Works Department, Directorate of Environment, Pollution Control Board, etc, the compounding shall be considered only after receipt of the said No Objection.
- c) The cost of land shall be assessed at the prevailing residential rate of the Authority, or the non-agriculture circle rate fixed by the District Collector, whichever is higher. For calculation of Compounding fee for all kinds of constructions only the residential rate of the land shall be taken into consideration.
- d) Compounding fee for compoundable construction in mixed land use shall be payable on the highest category use basis.
- e) In addition to charges payable as per rules for purchasable FAR, Compounding fee shall also be payable at the rates prescribed under Serial No.-2 of the Schedule. However, purchasable FAR charges for first 10% purchasable FAR shall not be payable.

- f) It shall be compulsory to provide additional parking arrangement in accordance with the rules in relation to Compoundable FAR/ Purchasable FAR.
- g) In case of use of illegal construction done in the basement being different from use permissible in building byelaws, the same shall be counted towards FAR and the illegal construction, on the basis of nature of old use, shall be Compoundable with the restriction that the arrangement for parking as per the standards is available inside the plot.
- h) Projections such as balcony /chhajja etc. shall be compoundable only up to Compoundable limit in setback area.

16.3.8 Schedule of Compounding Fee (Rule No 4)

16.3.8.1 Rates of Compounding Fee for various Land uses

1.	On construction without permission under permissible ground-coverage and Floor Area Ratio				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
A	Rs. 25 per sqm for construction of all nature on plots up to 150 sq meter.	2.0 x Residential rate	1.5 x Residential rate	0.4 x Residential rate	0.5 x Residential rate
B	Rs. 38 per sqm for construction of all nature on plot sizes >150 – 300 sqm	2.0 x Residential rate	1.5 x Residential rate	0.4 x Residential rate	0.5 x Residential rate
C	Rs. 50 per sqm for construction of all nature on plot sizes >300 – 500 sqm	2.0 x Residential rate	1.5 x Residential rate	0.4 x Residential rate	0.5 x Residential rate
E	Rs. 62 per sqm for construction of all nature on plot sizes >500 sqm/ Group Housing plots	2.0 x Residential rate	1.5 x Residential rate	0.4 x Residential rate	0.5 x Residential rate
F	On Compoundable units in addition to permissible units- Rs. 122640 per unit.	-	-	-	-
2.	On construction without permission beyond permissible ground-coverage (only on Ground Floor)				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
A	All Buildings <=15-meter and multi-units upto 17.5 meter height except Group Housing				
a	In Front Setback				
	100 percent of price of land	200 percent of price of land	150 percent of price of land	40 percent of price of land	50 percent of price of land
b	In Side Setback				
	75 percent of price of land	150 percent of price of land	100 percent of price of land	40 percent of price of land	50 percent of price of land

c	In Rear Setback				
	50 percent of price of land	100 percent of price of land	75 percent of price of land	20 percent of price of land	25 percent of price of land
B	On all sides of buildings >15-meter height and Group Housing except multi-units.				
	100 percent of price of land	200 percent of price of land	150 percent of price of land	40 percent of price of land	50 percent of price of land
3.	On construction within permissible ground coverage beyond permissible FAR				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	In construction of plotted development and Group Housing-Rs. 491 per sqm. and 50% of required land price for additional floor area.	Rs. 982 per sqm and 100 percent of required land price for additional floor area.	Rs.736 per sqm. and 75 percent of required land price for additional floor area.	Rs.196 per sqm. and 40 percent of required land price for additional floor area.	Rs. 246 per sqm. and 50 percent of required land price for additional floor area.
4.	On construction of basement beyond permissible limit				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	50 percent of price of land	100 percent of price of land	75 percent of price of land	20 percent of price of land	25 percent of price of land
5.	Internal height of room being less than the minimum prescribed height				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	Rs. 246 per sq meter on the area of the room	Rs. 491 per sq meter on the area of the room	Rs. 368 per sq meter on the area of the room	Rs. 123 per sq meter on the area of the room	Rs. 185 per sq meter on the area of the room
6.	On width of room being less than minimum prescribed width.				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	Rs. 123 per sq meter on the area of the room	Rs. 246 per sq meter on the area of the room	Rs. 185 per sq meter on the area of the room	Rs. 50 per sq meter on the area of the room	Rs. 62 per sq meter on the area of the room
7.	On area of the room being less than the prescribed area				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	Rs. 123 per sq meter on the area of the room	Rs. 246 per sq meter on the area of the room	Rs. 185 per sq meter on the area of the room	Rs. 50 per sq meter on the area of the room	Rs. 62 per sq meter on the area of the room
8.	On arrangement of light and ventilation in the room being less than prescribed area				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	Rs. 123 per sq meter on the area of the room	Rs. 246 per sq meter on the area of the room	Rs. 185 per sq meter on the area of the room	Rs. 50 per sq meter on the area of the room	Rs. 62 per sq meter on the area of the room
9.	On the height of Compound wall being more than the prescribed height				

Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	Rs. 123 per running meter but a minimum of Rs. 5000/-	Rs. 246 per running meter but a minimum of 10000/-	Rs. 383 per running meter but a minimum of Rs. 5000/-	Rs. 50 per running meter but a minimum of 1000/-	Rs. 62 per running meter but a minimum of Rs. 5000/-
10.	On construction beyond permissible building height				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	@Rs. 6132/- per running meter of height (measured as per periphery of existing building) per floor	2x	1.5x	0.4x	0.5x
11.	Land-division/ Development work without approval, which is in conformity with Building byelaws				
Sl.	Residential	Commercial	Office	Industrial	Facilities/ Others
	1.0 percent of price of land on saleable area	2.0 percent of price of land on saleable area	1.5 percent of price of land on saleable area	0.40 percent of price of land on saleable area	0.50 percent of price of land on saleable area
12.	Land division/development work for layouts up to the size of 1 acre, whose approval is not permissible as per byelaws				
S.N.	Residential	Commercial	Office	Industrial	Facilities/ Others
	Compounding fee at the rate of two times of price of land equivalent to decrease in the area required, as per byelaws, for roads, parks and open spaces and other community amenities.				
13.	Land division, whose approval is not permissible as per byelaws, (for categories excluding S. No. 11 & 12 of this table)				
S.N.	Residential	Commercial	Office	Industrial	Facilities/ Others
	In such matters, action shall be taken in accordance with the guidelines issued by the government for regularization of unauthorized colonies				

Note:

- For any construction in contravention of the byelaws (other than those listed in the above schedule) such as – porch, balcony/chhajja etc., but are compoundable; a compounding fee @Rs. 491/- per square meter shall be charged. The rate of compounding fee for commercial shall be two times, for office 1.5 times, for industrial 0.40 times, for facilities and other usages 0.50 times.
- For compounding of “permitted” activities/uses in accordance with chapter-15 of these byelaws, a fee of @10 percent of the Impact fee shall also be payable, in addition to the Impact Fee payable as per rules.
- The rate of compounding fee for charitable institutions, which are exempted under Section-80(G) of Income Tax Act, 1961 and facilities and service provided by public Sector and educational institutions shall be 50 percent of the residential rate.
- The rates, which are not based on the price of the land, i.e. which are prescribed on the basis of per square meter, shall be updated by the authority every year on the basis of cost index, for the purpose of compounding of unauthorized construction.

- v. The authority shall not permit or compound any construction beyond the limit of maximum permissible FAR. They shall ensure demolition and removal of extra construction beyond maximum permissible FAR, if any, before considering the permission of purchasable FAR.
- vi. Purchasable and Premium Purchasable FAR shall be applicable in already constructed buildings submitted for compounding. Such provision shall be availed only after ensuring the requisite statutory approvals, structural stability, fire and life safety requirements, parking and other provisions of building byelaws.

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